

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harold Rodriguez	Team: Squad #01	CCRB Case #: 202100840	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Friday, 02/05/2021 8:00 PM	Location of Incident: Corner of Tillary Street and Gold Street	18 Mo. SOL 8/5/2022	Precinct: 84		
Date/Time CV Reported Sat, 02/06/2021 11:29 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 02/06/2021 11:29 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Dana Martillo	02415	945954	069 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Katie Mcmanamon	20516	964159	068 PCT
2. POM Brendan Finnigan	22644	963031	068 PCT
3. SGT Joseph Amodio	00680	954484	068 PCT
4. POM David Wu	06465	964845	069 PCT
5. POM Sukhdev Rathour	07542	964720	069 PCT
6. POM Joshua Crowley	14413	967831	069 PCT
7. POF Sonya Senra	14981	956253	079 PCT
8. SGT Joanna Barletta	00430	951523	090 PCT
9. POM Joel Vidal	15650	966390	PSA 4
10. POF Marina Denisenko	07688	949856	073 PCT
11. POM Patrick Leonard	22293	962546	069 PCT
12. POM Faisal Elwan	10625	968390	090 PCT
13. LT Thomas Turner	00000	926232	073 PCT
14. POM Kieran Ross	02868	967310	083 PCT
15. POM Matthew Strzelczyk	02191	953453	073 PCT
16. POM Steven Piazza	21590	964215	083 PCT
17. POF Karina Costa	21247	968349	073 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Dana Martillo	Discourtesy: Sergeant Dana Martillo was discourteous toward individuals.	

Officer(s)	Allegation	Investigator Recommendation
B . SGT Dana Martillo	Off. Language: Sergeant Dana Martillo was offensive toward individuals.	
C . SGT Dana Martillo	Discourtesy: Sergeant Dana Martillo gestured discourteously toward individuals.	

Case Summary

This complaint was filed by an anonymous individual via the CCRB website on February 6, 2021. Duplicate complaints were also filed online by § 87(2)(b) § 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b). None of the identified individuals who filed the complaint were present and filed complaints based on viral videos of the incident.

On February 5, 2021, Sgt. Dana Martillo, of the 69th Precinct, wore Punisher-themed patches on her uniform while assigned to a Justice for George Floyd protest (**Allegation A-Discourtesy:** § 87(2)(g) **Allegation B - Offensive Language:** § 87(2)(g) While standing in front of the 84th Precinct stationhouse in Brooklyn, Sgt. Martillo made a facial gesture depicting a kiss towards unidentified protestors (**Allegation C -Discourtesy:** § 87(2)(g) (Board Review 29: Photos).

There were 18 Body-Worn Camera (BWC) videos associated with this protest (Board Review 01-18). Sgt. Martillo (Board Review 17) and PO Sonya Senra's (Board Review 01) BWC videos best capture Sgt. Martillo's interaction with the protestors.

This case was deemed sensitive due to the media coverage it received (Board Review 19-25).

Findings and Recommendations

Allegation (A) Discourtesy: Sergeant Dana Martillo was discourteous toward individuals.
Allegation (B) Offensive Language: Sergeant Dana Martillo was offensive toward individuals.
Allegation (C) Discourtesy: Sergeant Dana Martillo gestured discourteously toward individuals.

Several videos of Sgt. Martillo were posted to the internet that captured her wearing adornments on her uniform. One video was posted by § 87(2)(b) on TikTok (Board Review 26) and a second video (Board Review 27) was posted by an unidentified individual under the Twitter handle, § 87(2)(b). The sources of the videos are unknown as they were posted by multiple individuals across various social media platforms. In the videos, Sgt. Martillo wore two patches that depicted the skull symbol from the Marvel Comics character, The Punisher. The Punisher is generally depicted within the Marvel Comics Universe as a vigilante who operates outside of the law (Board Review 33). The skull logos had blonde hair that was meant to appear like the signature hairstyle of Donald Trump. One of the patches included the statement, "Trump 2020, Make Enforcement Great Again", while the other was only the Punisher logo with the blonde hair (Board Review 29). Several protestors on site berated Sgt. Martillo over the use of those symbols on her uniform while recording her and taking photos of her. The protestors yelled, "Where were you on January 6?" and called Sgt. Martillo and the officers around her, "domestic terrorists." At 00:38 of the second video (Board Review 27), Sgt. Martillo pulled her facemask down under her mouth and made a kissing motion towards (an) individual(s) off camera. The individual filming the video responded, "ew!" while another individual stated, "That was hot! Do it again!" The videos went viral and were the subject of mass media news coverage.

Seven individuals submitted complaints to the CCRB after seeing the viral videos of Sgt. Martillo on the internet. These individuals, the unidentified individuals in the video that yelled at Sgt. Martillo, and those who posted, re-posted and shared the videos across various social media platforms, were upset by the symbols worn by Sgt. Martillo.

§ 87(2)(b) did not cooperate with the investigation and therefore did not provide a statement or confirm if she was present for the incident. The Twitter user that shared video #2 did not respond to multiple social media messages sent by the CCRB.

Sgt. Martillo was interviewed by IAB and the NYPD investigation remains open as of the writing of this report.

Sgt. Martillo provided a statement to the CCRB on April 27, 2021 (Board Review 28). Sgt. Martillo was assigned to follow a protest from Fort Greene Park to the 84th Precinct stationhouse and back to Fort Greene Park. Sgt. Martillo acknowledged that she wore the two Punisher based patches in question and had been doing so for several months. Sgt. Martillo described the patches as two skulls, one of which said “Trump” and “Make Enforcement Great Again.” Sgt. Martillo stated that the meaning of those symbols was just the statement of “making enforcement great again” and she was not aware of any other meaning behind them. Sgt. Martillo wore the patches on her uniform because they were a gift from a friend that did not work for, nor was affiliated with the NYPD. She stated that no superior officers had ever talked to her about the patches and she had never been reprimanded for wearing them prior to this date. Only following this incident, did Sgt. Martillo first learn that non-NYPD-sanctioned adornments were not allowed on her police uniform. Sgt. Martillo stated that during the time of the incident, a group of protestors were yelling at her and recording her. She made the kissing motion with her lips in an effort to diffuse the tension in the area between herself and the protestors. Sgt. Martillo did not recall doing the motion towards anyone specific.

Sgt. Martillo’s BWC captured interactions with the public making comments and taking video and photos of the patches starting at approximately 07:50 in the video player running time. When comparing her video with other videos, she makes the kissing gesture just after 12:05 though it is not certain to whom she directed the gesture (Board Review 17).

The Punisher skull symbol was originally loosely based on the German “Totenkopf” a.k.a “Death’s Head” symbol. The Totenkopf depicts a skull and crossbones and was adopted by Adolf Hitler’s Nazi-era Schutzstaffel (SS) as their symbol during World War II (Board Review 40). The use of the Punisher symbol outside of the Marvel Comics universe was traced back to the rise of post-9/11 militarization. Famed US Navy SEAL sniper, Chris Kyle, stated in his 2012 autobiography titled, “American Sniper,” that his unit was nicknamed, “The Punishers” and painted the skull on their equipment, Hummers, body armor, helmets and all their guns (Board Review 36). The symbol has recently been adopted by white supremacists and QAnon conspiracy theorists who maintain that there is a secret plot against Donald Trump. Members of the group began using the Punisher logo as a recruitment tool and have created versions of the logo that feature Donald Trump’s signature haircut (Board Review 37). Between 2017 and 2021, the Punisher logo has been visible on articles of clothing and weapons held at white supremacy rallies and most recently, the storming of the US Capitol on January 6, 2021. Punisher creator, Gerry Conway stated in an interview with SyfyWire (Board Review 38) that police and military use of the Punisher logo is “disturbing.” He also stated, “The vigilante anti-hero is fundamentally a critique of the justice system, an example of social failure, so when cops put Punisher skulls on their cars or members of the military wear Punisher skull patches, they’re basically siding with an enemy of the system. They are embracing an outlaw mentality...He (the Punisher) is a criminal.”

Per NYPD Patrol Guide Procedure 200-02, the mission of the NYPD is to enhance the quality of life in New York City by working in partnership with the community to enforce the law, preserve peace, protect the people, reduce fear and maintain order. As part of their core values, the NYPD maintain a higher standard of integrity than is generally expected of others. Additionally, it is their mission to value human life, respect the dignity of each individual and render their services with courtesy and civility (Board Review 30).

Per NYPD Patrol Guide Procedure 203-10, officers are prohibited from using discourteous or disrespectful remarks regarding another person’s ethnicity and race, knowingly associating with

